

The SAC references punitive damages in paragraphs 28, 30, and Prayer paragraph 5. The SAC alleges there was an active construction zone that included a “pavement edge drop-off where the adjacent graded lane sat several inches lower than the travel lane.” (§10.) Multiple cones had been knocked over and were lying in the roadway at the time of the incident. (§12.) The non-defendant at-fault driver allegedly drove her car onto the lower graded lane and when she attempted to street back she lost control of her car when her tire snagged long the elevation differential. This is when the other car “veered sharply into Plaintiff’s lane and collided nearly head-on with Plaintiff’s vehicle.” (§14.) The SAC is entirely devoid of any factual allegations that indicate any Defendant acted with malice, oppression, or fraud.

4.

CASE #	CASE NAME	HEARING NAME
CVME2600247	WIENS VS WOODSIDE HOMES OF CALIFORNIA, INC.	MOTION TO COMPEL ARBITRATION

Tentative Ruling: Grant the motion. Sustain Plaintiff’s Objections 1, 2 and 3. Overrule Objections 4 and 5.

Ms. Wiens executed a Salesperson Employment Agreement with Woodside Homes through DocuSign. The executed agreement bears DocuSign Envelope ID 35CDBFCE-BAA7-483D-98D5-ED660A95CCE5 and reflects Ms. Wiens’ electronic signature dated April 27, 2023. Because Plaintiff’s claims are based on FEHA and wrongful termination, they are covered by the Arbitration Agreement. Accordingly, Defendant has satisfied its burden of establishing the existence of an Arbitration Agreement.

Signing the Arbitration Agreement was a required condition of employment. Thus, the Agreement is a contract of adhesion which establishes some degree of procedural unconscionability. As to the JAMS rules, they are clearly referenced in the Arbitration Agreement, which states that the JAMS rules may be obtained from the Company or by going to www.JAMSADR.com. (Decl. of Lebrilla-Honrado, Ex. A, ¶ 26.) Thus, Plaintiff had access to the JAMS rules. Plaintiff does not assert that any of the rules are substantively unconscionable.

However, Plaintiff argues that the Arbitration Agreement is substantively unconscionable because it does not provide for the asymmetrical fee-shifting provision under FEHA. Although the cost provision is somewhat confusing, it is clear that statutory remedies, including those provided under FEHA are available. Although it is not clear whether a Salesperson would be required to pay any arbitration costs for claims other than those involving wrongful termination or employment discrimination, Plaintiff’s claims are based on such disputes. Accordingly, Plaintiff has not established that the Arbitration Agreement is substantively unconscionable.

5.

CASE #	CASE NAME	HEARING NAME
CVME2502547	RODRIGUEZ V. NUNEZ	EX PARTE

Tentative Ruling: Grant. Set the DPU on December 21, 2026, at 10:00 a.m.